7. It provides that the parties to a dispute before a Family Court shall not be entitled, as of right, to be represented by legal practitioner. However, the Court may, in the interest of justice, seek assistance of a legal expert as *amicus curiae*.

8. It simplifies the rules of evidence and procedure so as to enable a Family Court to deal effectively with a dispute.

9. It provides for only one right of appeal which shall lie to the High Court.

GRAM NYAYALAYAS

The Gram Nyayalayas Act, 2008 has been enacted to provide for the establishment of the Gram Nyayalayas at the grass roots level for the purposes of providing access to justice to the citizens at their doorsteps and to ensure that opportunities for securing justice are not denied to any citizen due to social, economic or other disabilities.

 **Reasons**

While introducing the Gram Nyayalayas Bill in the Parliament, the Government of India gave the following reasons for the establishment of Gram Nyayalayas:

1. Access to justice by the poor and disadvantaged remains a worldwide problem despite diverse approaches and strategies that have been formulated and implemented to address it. In our country, Article 39A of the Constitution directs the State to secure that the operation of the legal system promotes justice, on a basis of equal opportunity and shall provide free legal aid to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.

2. In the recent past, the Government has taken various measures to strengthen judicial system, inter alia, by simplifying the procedural laws; incorporating various alternative dispute resolution mechanisms such as arbitration, conciliation and mediation; conducting of Lok Adalats, etc. These measures are required to be strengthened further.

3. The Law Commission of India in its 114th Report on Gram Nyayalaya suggested establishment of Gram Nyayalayas so that speedy, inexpensive and substantial justice could be provided to the common man. The Gram Nyayalayas Act, 2008 is broadly based on the recommendations of the Law Commission.

4. Justice to the poor at their door step is a dream of the poor. Setting up of Gram Nyayalayas in the rural areas would bring to the people of rural areas speedy, affordable and substantial justice.

 **Features**

The salient features of the Gram Nyayalayas Act are as follows[6]:

1. The Gram Nyayalaya shall be court of Judicial Magistrate of the first class and its presiding officer (Nyayadhikari) shall be appointed by the State Government in consultation with the High Court.